

## 21BBCV00971 21BBCV00971

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-14

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Case Number: 21BBCV00971 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO BE RELIEVED AS COUNSEL

Hearing Date: 8/14/26¿

CASE NO./NAME: 21BBCV00971/ Amira v. CMM, LLP, et al.

Moving Party: Defendants' Counsel

Responding Party: None

Notice: Sufficient¿

Ruling: GRANTED

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

Attorney Jeri E. Tabbac, Esq. (Counsel) represents defendants Agustin Gonzalez and Home Trend Developers, Inc. (Defendants) in this breach of contract action. On July 16, 2026, Counsel filed the instant motions to be relieved as counsel as to Defendants. Counsel cites a breakdown in the attorney client relationship.

No oppositions have been filed as of August 6, 2026.

## LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284(2).) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court, rule 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court, rule 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Court, rule 3.1362(e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

## DISCUSSION

Counsel has filed the notice of motion to be relieved as counsel on form MC-051 as to both Defendants (Cal. Rules of Court, rule 3.1362(a)), a declaration on form MC-052 as to both Defendants (Cal. Rules of Court, rule 3.1362(c)), and proposed order on form MC-053 as to both Defendants. (Cal. Rules of Court, rule 3.1362(e).) Counsel's declaration identifies the October 2026 trial date, and the proposed order identifies the next hearing as the Final Status Conference. (Price Decl., ¶ 5; Proposed Order, ¶ 7.)

Counsel declares that there has been a complete breakdown in attorney client communication and trust. (Price Decl., ¶ 2.) Counsel declares that Defendants have failed to substantially fulfill obligations to Counsel regarding Counsel's services and has been given several warnings. (Ibid.) Further, Counsel declares that Defendants have refused to sign a substitution of attorney form forcing the filing of this motion. (Ibid.)

The Court finds that Counsel has set forth sufficient grounds to be relieved as counsel for Defendants. Also, the motion complies with the requirements of California Rules of Court, rule 3.1362. Given that trial in this action is set for October 5, 2026, the Court finds that withdrawal at this stage of litigation will not prejudice Defendants. Defendants have not filed an opposition contending otherwise.

## CONCLUSION AND ORDER

Attorney Jeri E. Tabbac, Esq.'s motion to be relieved as counsel is GRANTED.

The Court schedules an Order to Show Cause re: Case Status for September

10, 2026, at 8:30 a.m. in Department B of the Burbank Courthouse. All parties

are ordered to appear in court.

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 5 days from this date.